

12. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY DEFENDANT SHEA HOMES LIMITED PARTNERSHIP
FILED BY: SHEA HOMES LIMITED PARTNERSHIP
TENTATIVE RULING:

The Court continues the hearing on this motion to September 9, 2026 at 9:00 a.m.

13. 9:00 AM CASE NUMBER: C24-01760
CASE NAME: ACD-TI OAKLEY LLC VS. SUMMER LAKE OWNERS ASSOCIATION
HEARING ON SUMMARY MOTION FILED BY CROSS-DEFENDANT OAKLEY UNION ELEMENTARY
SCHOOL DISTRICT
FILED BY:
TENTATIVE RULING:

Judgment in favor of Cross-Defendant Oakley Union was entered on 8/5. If this motion is withdrawn or moot, counsel shall provide notice to the Court.

14. 9:00 AM CASE NUMBER: C24-02009
CASE NAME: DANIEL RUBIO VS. RH OAK, INC.
***HEARING ON MOTION IN RE: ENFORCE SETTLEMENT AGREEMENT**
FILED BY: RH OAK, INC.
TENTATIVE RULING:

Before the Court is Defendant RH Oak, Inc.'s Motion to Enforce Settlement Agreement and for Award of Attorney Fees, Costs and Sanctions ("Motion").

General Procedural Background

Plaintiff filed his original Class Action Complaint on July 30, 2024, alleging nine employment related causes of action. The First Amended Class Action Complaint was filed on December 9, 2024, which added a PAGA claim.

On March 11, 2025, Plaintiff Daniel Rubio executed a Mutual Release and Settlement Agreement ("Settlement Agreement") with Defendant RH Oak, Inc. The Settlement Agreement calls for a payment to Plaintiff (discussed below) in return for Plaintiff filing a Request for Dismissal of the Complaint within 2 business days of the full execution of the Settlement Agreement – *i.e.* by March 15, 2026.

Defendant notes that Plaintiff has not dismissed the Complaint as required by the Agreement. Instead, a motion for leave to amend was filed on his behalf on January 14, 2026. Given the failure of Plaintiff to abide by the terms of the Agreement, Defendant now moves to enforce the Agreement.